

HOUSE No. 2301

The Commonwealth of Massachusetts

PRESENTED BY:

Kristin E. Kassner

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to local option zoning voting thresholds.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kristin E. Kassner</i>	<i>2nd Essex</i>	<i>1/16/2025</i>

HOUSE No. 2301

By Representative Kassner of Hamilton, a petition (accompanied by bill, House, No. 2301) of Kristin E. Kassner relative to zoning voting thresholds. Municipalities and Regional Government.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3552 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to local option zoning voting thresholds.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 5 of chapter 40A of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by striking out the following language: “no zoning ordinance or by-law or
3 amendment thereto shall be adopted or changed except by a two-thirds vote of all the members
4 of the town council, or of the city council where there is a commission form of government or a
5 single branch, or of each branch where there are 2 branches, or by a two-thirds vote of a town
6 meeting” and inserting in place thereof the following:-

7 “No zoning ordinance or by-law or amendment thereto shall be adopted or changed
8 except by a two-thirds vote of all the members of the town council, or of the city council where
9 there is a commission form of government or a single branch, or of each branch where there are
10 two branches, or by a two-thirds vote of a town meeting. Except that the voting majority may be

- 11 changed to a simple majority vote; such change shall be made by the voting majority then in
- 12 effect and shall not become effective until 6 months have elapsed after the vote”